AGREEMENT FOR SALE

THIS AGREEMENT FOR SALE is made and executed on this **day** of **November 2023.**

BETWEEN

Mrs.K Tamilselvi W/o. Mr.P.Kanagharaj (Aadhar No. 7498 4976 7735), (Pan No.AIHPT6462E), residing at D.No. 7A4, 1st Street, Nehru Street, Ramakrishnapuram, Ganapathy, Coimbatore 641006, herein after called the **"Party of First Part"** (which expression shall mean and include her legal heirs, successors-in-interest, administrators, legal representatives and assigns).

AND

Ms. S.Kalaivani D/o. Late.T.Padmanaban, (Aadhar No.3324 7721 1145), (Pan No. APIPK9847E), residing at 2D, Pettukola Towers, No.190 B, Nawraji Road, Poonamalle High Road, Kilpauk, Chennai 600010, hereinafter called the **"Party of Second Part"**.

WITNESSETH AS FOLLOWS:-

Whereas, the property morefully described in Schedule hereunder being available extent measuring an extent of 22 cents 422 sq.ft. in S.F.No.177/1D1 as per present sub division in Saravanampatti Village, Coimbatore District along with larger extent with structures thereon originally belonged to the husband of Party of First Part namely P.Kanagaraj absolutely by virtue of a Sale Deed dated 14.06.2004, registered as Doc.No.2953/2004 at SRO, Gandhipuram executed by one M/s. Essorpee Mills Private Limited rep. by its Power Agent for valid consideration and since then he had been in possession and enjoyment of the said property as its absolute owner.

Whereas, there was typographical error crept in the aforesaid Sale Deed dated 14.06.2004 while mentioning the date of the parent document which was duly rectified as per Rectification Deed dated 19.05.2006, registered as Doc.No.3642/2006 at SRO, Gandhipuram.

Whereas, the said P.Kangaraj thereafter settled the said property in favour of his wife namely the Party of First Part herein under a Settlement Deed dated 24.02.2006, registered as Doc.No.1501/2006 at SRO, Gandhipuram with absolute right out of love and affection and since then the Party of First Part herein has been in possession and enjoyment of said property as its absolute owner.

Whereas, now the Party of First Part is intending to sell the aforesaid landed property with building thereon as more fully described in Schedule hereunder to Party of Second Part for a sale consideration of **Rs.9,05,00,000/- (Rupees Nine Crores and Five Lakhs Only)** and the Party of Second Part also agreed to purchase the same for the said sale price.

Now in pursuance of the aforesaid arrangement, on this day the Party of Second Part paid a sum of **Rs.35,00,000/- (Rupees Thirty Five Lakhs only)** through DD bearing No…… drawn …….. towards part sale consideration and the Party of First Part also hereby acknowledges the receipt of said sum as part sale consideration paid by the Party of Second Part.

Whereas, the Party of Second Part hereunder agrees to pay the remaining balance sale consideration of **Rs. 8,70,00,000/- (Rupees Eight Crores and Seventy Lakhs only)** within a period of one month from the date of this agreement and the Party of First Part also agrees for the same and on payment of the remaining balance consideration, the Party of First Part agrees to execute Sale Deed in favor of Party of Second Part or her nominee at the cost of Party of Second Part free of all encumbrances.

Whereas, the Party of First Part declares that she has got absolute right to convey the said property to Party of Second Part and there are no other Sale Agreements subsist pertaining to the said property as on this date.

Whereas, the Party of First Part hereby declares that there are no encumbrances such as Court attachment, lien, claim, interest or acquisition proceedings or any other encumbrances of whatsoever nature touching the title of the said property except a Mortgage with Indian Overseas Bank, Ganapathy

Branch, Coimbatore as per Equitable Mortgage created by the Party of First Part herein. It is condition precedent that the party of first part shall discharge the aforesaid mortgage loan within a week time and make it free from encumbrances enabling the party of Second Part to complete the sale.

Whereas, if the Party of First Part is ready and willing to complete the sale free of all encumbrances by receiving remaining sale price within the stipulated period after discharging mortgage debt with IOB and in case if the Party of Second Part fails or delays for the same, a sum of Rs.5,00,000/- out of the entire advance amount paid by the Party of Second Part shall be forfeited.

Whereas, incase if the Party of Second Part is ready and willing to complete the sale within stipulated period and incase if the Party of First Part fails or delays the completion of sale free of all encumbrances, the Party of Second Part is at liberty to proceed in Court of law to complete the sale under The Specific Relief Act through Court by holding the Party of First Part liable for the same. The possession of property is not given to Party of Second Part in pursuance of this agreement.

This agreement is taken as two originals and each party shall have one respectively.

SCHEDULE OF PROPERTY

Coimbatore Registration District, Gandhipuram Sub-Registration District, Coimbatore North Taluk, Saravanampatti Village, in S.F No.177/1D1 an extent of 22 cents 422 sq.ft. is within the following boundaries and measurements:

North by	-	S.F.No.177/1C
South by	-	S.F.No.177/1D2
East by	-	S.F.No.177/1C
West by	-	Sathi Road in S.F.No.198

In middle of this,

On North by Eastwest	-	40.6 mts.
On South by Eastwest	-	40.4 mts.
On East by Northsouth	-	22.9 mts.
On West by Northsouth	-	23.0 mts.

measuring an extent of 10005 sq.ft. or 22 cents 422 sq.ft. of land with RCC built up area measuring 4460 sq.ft. consisting ground floor, first floor and ACC sheet structures measuring 1294 sq.ft. thereon with all rights appended to it.

As per Settlement Deed dated 24.02.2006 the extent is 25 cents 410 sq.ft. and now after subdivision in S.F.No.177/1D1 the available extent is 22 cents 422 sq.ft.

PARTY OF FIRST PART **PARTY OF SECOND PART**

WITNESSES;

1.

2.